UPPER NAZARETH TOWNSHIP
TUSKES PARK PAVILION
USE AGREEMENT

This Use Agreement shall be between the Township of Upper Nazareth hereinafter referred to as "Township" and _____, hereinafter referred to as "User". Please call Shawn Shupe, Public Works, at 484-357-6988 if any problems in the park facility. Police can be reached by calling 610-759-2200.

Section 1
The Township of Upper Nazareth agrees to allow the use of the picnic pavilion on the following date:_____.

*** Private Parties Only*** Public Events are not permitted. ***

TYPE of PARTY:_____(example: birthday, graduation)

Small Pavilion (max 50 people)

Full Day _____

Large Pavilion (40 - 80 people)

Full Day _____

Section 2
The User agrees to pay a use fee made payable to Upper Nazareth Township.
**Please see the attached Fee Schedule for pricing.

Section 3
The User agrees to comply with all Township regulations, Code of Ordinances, Chapter 16, Township Park and Recreation Policy No. 23-01 and the following rules:

A. No alcoholic beverages
B. No littering or property damage
C. No concessions of any kind shall be sold without obtaining permission from Upper Nazareth Township Board of Supervisors
D. Animals are prohibited including the running of dogs
E. The parking of vehicles is prohibited in areas other than the designated parking lots
F. Use of the athletic field(s)/court for anything other than their designed purpose shall first be approved by the Township
G. The pavilion, picnic tables and surrounding area will be maintained in good condition before, during, and after utilization
H. A Use Agreement shall be required and the approved Use Agreement must be with the User at all times while utilizing the park
I. Proof of insurance is required

The parties below agree to the conditions as set forth in this Use Agreement

Signature – User *date*	*Upper Nazareth Township*
Print name	*Date of Approval*
Street Address	
City, State, Zip	
Phone number and Alternate phone number	

Hold Harmless Waiver

It is our intent _____ (name) with renting a pavilion in Upper Nazareth Township that we are agreeable to the following:

We acknowledge that we are aware that there are risks to us of exposure to directly or indirectly arising out of, contributed to, by, or resulting from:

- An outbreak of any and all communicable disease, including but not limited to, the virus "severe acute respiratory syndrome coronavirus 2 (SARS-CoV-2)", which is responsible for Coronavirus Disease (COVID-19) and/or any mutation or variation thereof:

In consideration of having the opportunity to rent a pavilion at this location, and in acknowledging that we are aware of and willing to assume the risks associated with this activity, We hereby voluntarily agree to waive, hold harmless and indemnify Upper Nazareth Township and its trustees, agents, volunteers and employees from any and all claims, demands, damages and causes of action of any nature whatsoever arising out of ordinary negligence which We, our heirs, our assigns or successors may have against them for, on account of, or by reason of our participation in the above activities. We indicate our agreement to this hold harmless elective noted below.

Printed Name_____

Title_____

Signature_____

UPPER NAZARETH TOWNSHIP

Escrow and Fee Schedule

Adopted by Resolution No. 21-19 on December 15, 2021 Effective January 1, 2022

Sewage Permit Fees

Test Pit Profile Analysis (Procedure for Probe)
Percolation Test (Limited to 6 Holes)
On-Lot Disposal Permit
Septic Repairs

***** All Fees are per the current SEO Fee Schedule*****

Recreation

Facility	Resident	Non Resident
Security Deposit - Refundable		
Required for Single Field Use	$100.00	$150.00
Key Fobs (when returned)	$50.00	$75.00
Key for Lights (when returned)	$150.00	$150.00
Use Fees		
Single Use	$50.00	$75.00
2 -5 Day Use or 2 - 5 Day Tournaments	$150.00	$175.00
Consecutive Play 5 weeks or more 1 - 3 days a week	$200.00	$225.00
Consecutive Play 5 weeks or more 4 or more days a week	$275.00	$300.00
Concession Stand - per month	$50.00	$75.00
Conference Room - per use	$25.00	$50.00
Pavilion Rentals		
Small - by the Playground		
Full Day	$50.00	$75.00
Large - by the Gaga Pit		
Full Day	$100.00	$125.00